

		Therefore, the court will continue the hearing on this motion and order that Counsel file and lodge the proposed order with the court and serve it upon Plaintiff Sheng Zhang as required by California Rules of Court Rule 3.1362. Counsel shall give notice of this ruling.
10	United Auto Credit Corporation vs. Ethos Auto Group LLC 30-2023-01336690	<u>Motion for Summary Judgment and/or Summary Adjudication</u> Plaintiff United Auto Credit Corporation's Motion for Summary Judgment, or in the Alternative, Motion for Summary Adjudication is DENIED without prejudice. <u>Pending Motion</u> Plaintiff United Auto Credit Corporation moves for summary judgment as to the Complaint. In the alternative, Plaintiff moves for summary adjudication as to the 1st Cause of Action against Defendant Ethos Auto Group LLC (Defendant Ethos) and the 2nd Cause of Action against Defendant Takeshi Hayashi (Defendant Hayashi). <u>Standard for Summary Judgment or Summary Adjudication</u> A party may move for summary judgment, which "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).) In addition, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c, subd. (f)(1).)

		Summary judgment, as opposed to summary adjudication, is not proper unless there is no merit or no defense to the entire action or proceeding. (See Code of Civil Procedure section 437c, subd. (a).) Thus, if any cause of action survives, a grant of summary judgment is improper. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2002) ¶¶ 10:26 to 10:27, p. 10-9.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence "showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc. § 437c, subd. (p)(1).) However, "[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial." (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v. Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) In ruling on a motion for summary judgment or summary adjudication, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the
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		party opposing it.” (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (<i>Johnson v. United Cerebral Palsy/Spastic Children’s Foundation of Los Angeles and Ventura Counties</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>1st Cause of Action (Breach of Written Contract – Dealer Agreement) and 2nd Cause of Action (Breach of Written Contract – Personal and Continuing Guarantee)</u> “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821) In addition, “[a] lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (<i>Gray1 CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486.) Plaintiff presented evidence that it routinely purchases automotive retail installment contracts (RISC) from automobile dealers. (See Plaintiff’s Separate Statement of Undisputed Material Facts in Supp. of Its Mot. for Summ. J., or in the Alternative, Summ. Adj. (Separate Statement), Undisputed Material Fact 2.)
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	Plaintiff also showed that, on or about January 20, 2022, Plaintiff and Defendant Ethos entered into a written agreement entitled the "United Auto Credit Corporation Independent Dealer Agreement" (Dealer Agreement). (See <i>id.</i>, Undisputed Material Fact 3.) Plaintiff submitted evidence that Defendant Hayashi personally guaranteed Defendant Ethos' performance of the Dealer Agreement by way of a personal guaranty (Guaranty). (See <i>id.</i>, Undisputed Material Fact 4.) Section 6(a) of the Dealer Agreement states that Defendant Ethos must repurchase any Contract for which "Dealer either fails to perform any of its obligations hereunder or otherwise or Dealer breaches any representation, warranty, or covenant made herein, or made in connection with the sale of the Vehicle." (<i>Id.</i>, Undisputed Material Fact 9.) Therefore, Plaintiff has provided evidence showing the existence of an agreement between Plaintiff and Defendant Ethos, that Defendant Ethos breached the repurchase terms of the Dealer Agreement, and that Plaintiff was damaged by Defendant Ethos' breach. However, Plaintiff failed to present evidence that it performed its material obligations under the Dealer Agreement or that it was excused from performance. Plaintiff's primary obligation under the Dealer Agreement is to pay the agreed-upon purchase price for the RISCs that Plaintiff purchases from Defendant Ethos. (See Decl. of John Cardona in Supp. of Pltf.'s Mot for Summ. J., or in the Alternative, Summ. Adj. (Cardona Decl.), Exh. 1, §§ 1(a), 2.) Specifically, the Dealer Agreement states that "[t]he parties agree that the purchase of a Contract [RISC] shall occur as of the time Plaintiff forwards funds to Dealer after Plaintiff's receipt, verification and approval, in its sole discretion of the information and documents specified in Plaintiff's then-effective program guidelines or otherwise requested by Plaintiff." (<i>Id.</i>, Exh. 1, § 1(a); see also <i>id.</i>, Exh. 1, § 3(a) ["The purchase price for a Contract [RISC] shall be an amount
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		agreed upon by Plaintiff and Dealer ('Purchase Price')."].) Although the Separate Statement indicates that Plaintiff purchased RISCs from Defendant Ethos, Plaintiff submits no evidence that it paid the agreed-upon purchase price for the RISCs. The memorandum of points and authorities in support of the motion states that Plaintiff purchased the RISCs for the vehicles in question. (See Pltf.'s Mem. of P.s&A.s in Supp. of Pltf.'s Mot for Summ. J., or in the Alternative, Summ. Adj. at p. 13:13-14.) However, Plaintiff does not provide any evidence to support this contention. Instead, Plaintiff only cites to evidence showing that consumers purchased the subject vehicles from Defendant Ethos. (See Separate Statement, Undisputed Material Facts Numbers 12, 21,29, 36, 43.) It is true that neither Defendant Ethos nor Defendant Hayashi filed an opposition to the motion or otherwise responded to the motion. However, as the moving party, Plaintiff bears the initial burden of making a prima facie showing as to each element of the claim. "If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (<i>Saelzler v. Advanced Group 400, supra</i>, 25 Cal.4th at p. 780, quoting <i>Leslie G. v. Perry & Associates, supra</i>, 43 Cal.App.4th at p. 482.) Similarly, Plaintiff failed to provide evidence that it performed or was excused from performing its material obligations under the Guaranty. Therefore, the court must deny summary adjudication as to the 1st and 2nd Causes of Action. And because there is a triable issue of material fact as to some of the causes of action, the court cannot grant summary judgment. The court clerk shall give notice of this ruling.
11	Ramirez vs. City of Santa Ana 30-2022-01287702	<u>Motion for Protective Order</u> Defendant City of Santa Ana's Ex Parte Application for A Protective Order is DENIED without prejudice.